

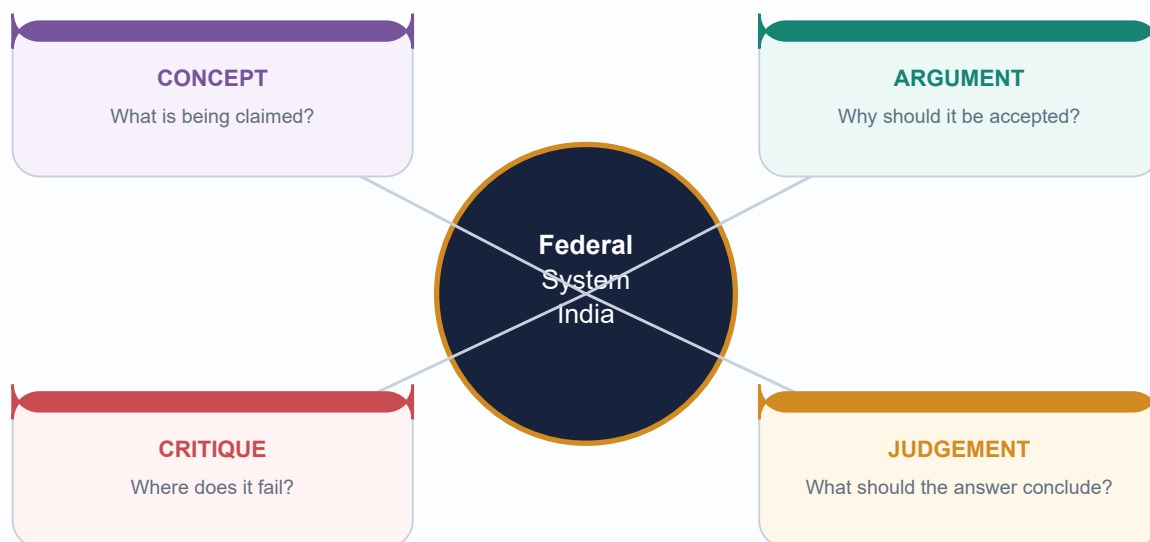
UPSC GS-II POLITY

# Federal System of India

Subject: Indian Polity | GS Paper: GS-II

Session-Level Learning PDF - Federal System (Union of States, Seventh Schedule)

Grounded in M. Laxmikant, Indian Polity Ch. 13 + verified current-affairs and PYQ anchors



Facts from official sources | Inferences clearly marked | No fabricated data

## HIGH UPSC RELEVANCE

HIGH

## 1. Federal vs Unitary: Concept and Formation Routes

GS-II Polity -  
Federal System

## NEWS TRIGGER

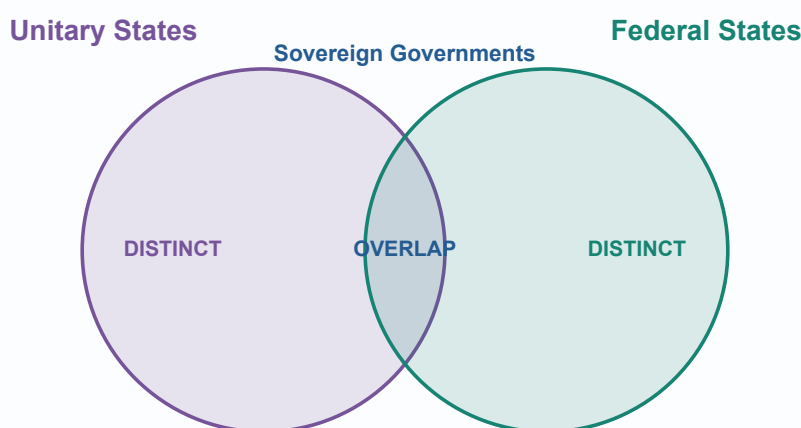
GST coordination, fiscal-devolution demands and bill-assent disputes keep the federal-vs-unitary character of the Indian state a live constitutional question.

## INTRO &amp; ORIGIN

'Federation' derives from the Latin foedus - treaty/agreement. In a unitary state all powers rest with the national government and regions derive authority from it (Britain, France, Japan, China). In a federal state, powers are divided by the Constitution itself and both levels operate independently (USA, Switzerland, Australia, Canada, Russia).

*India adopted federalism owing to (i) its large size and (ii) socio-cultural diversity, reconciling national unity with regional autonomy.*

## UNITARY STATES VS FEDERAL STATES



## Unitary States

- All powers in the national government
- Regions derive authority from the centre
- Examples: Britain, France, Japan, China

## Sovereign Governments

- Both need a functioning executive-legislature relationship
- Both can be constitutional democracies

## Federal States

- Powers divided by the Constitution itself
- Both levels operate independently
- Examples: USA, Switzerland, Australia, Canada, Russia

*India's federal design borrows the 'holding together' route, not the 'coming together' route.*

## KEY DATA

| Formation Route                     | Description                                          | Example                                 |
|-------------------------------------|------------------------------------------------------|-----------------------------------------|
| Integration - 'coming together'     | Weak/sovereign states unite into a strong union      | USA, 1787 - oldest federation           |
| Disintegration - 'holding together' | A big unitary state grants autonomy to its provinces | Canada, 1867; India followed this route |

## STATIC THEORY

- 'Federation' is NEVER used in the Indian Constitution - Article 1 says 'Union of States'.
- Ambedkar: the Union is not the result of an agreement, and no state has a right to secede - hence it is indestructible.
- India's model resembles Canada (strong centre), not the USA - in formation by disintegration, use of the term 'Union', and a centralising tendency.

**MEMORY HOOK**

India = Union of States, never 'Federation' - holding together, not coming together.

**MUST-KNOW FACTS**

1. Units in a federation are called states (US), cantons (Switzerland), provinces (Canada), or republics (Russia).

**UPSC TRAPS**

**WRONG:** The word 'Federation' appears in the Constitution.

**CORRECT:** It never does; Article 1 uses 'Union of States'.

**WRONG:** India follows the American federal model.

**CORRECT:** India follows the Canadian model (strong centre, disintegration, 'Union').

**MAINS ANGLE**

*Does the 'holding together' origin of Indian federalism explain its structural bias toward the Centre?*

**STUDY LINK**

Cross-link 02\_Making-of-the-Constitution for Constituent Assembly debates on Union vs federation.

**HIGH****2. Constitutional Architecture: the Seventh Schedule**GS-II Polity -  
Federal System**INTRO & ORIGIN**

The Seventh Schedule is the constitutional architecture of India's federal division of powers.

**SEVENTH SCHEDULE SUBJECT COUNTS**

*Predominance order: Union > Concurrent > State - reflecting India's centralising tilt.*

**KEY DATA**

| List             | Subjects | Residuary Power                                                 |
|------------------|----------|-----------------------------------------------------------------|
| Union List       | 98       | -                                                               |
| State List       | 59       | -                                                               |
| Concurrent List  | 52       | -                                                               |
| Residuary powers | -        | Centre (opposite of the USA, where residuary rests with states) |

**STATIC THEORY**

- The 42nd Amendment (1976) shifted 5 subjects from the State to the Concurrent List: education, forests, weights & measures, wildlife protection, and administration of justice.
- Residuary powers vest in the Centre - the opposite of the American arrangement.

**MUST-KNOW FACTS**

1. The residuary-to-Centre rule follows the Canadian precedent; the Government of India Act, 1935 had given residuary powers to the Governor-General.

**UPSC TRAPS**

**WRONG:** The 42nd Amendment shifted subjects from Concurrent to State.

**CORRECT:** It shifted 5 subjects from State to Concurrent.

**WRONG:** Residuary powers rest with the states.

**CORRECT:** They rest with the Centre (opposite of the USA).

**MAINS ANGLE**

*Has the Concurrent List's growth (via the 42nd Amendment) tilted the federal balance further toward the Centre?*

**STUDY LINK**

Cross-link

13\_Centre-State-and-Inter-State-Relations for how this division plays out in legislative relations.

**HIGH****3. The 7 Federal Features**GS-II Polity -  
Federal System**KEY DATA**

| # | Feature                       | Detail                                                                               |
|---|-------------------------------|--------------------------------------------------------------------------------------|
| 1 | Dual polity                   | Union at the centre + states at the periphery, each sovereign in its own field       |
| 2 | Written Constitution          | Longest in the world; defines the structure, powers and limits of both levels        |
| 3 | Division of powers            | Seventh Schedule - Union (98), State (59), Concurrent (52); residuary to the Centre  |
| 4 | Supremacy of the Constitution | Highest law; laws violating it are struck down through judicial review               |
| 5 | Rigid Constitution            | Federal provisions need a special majority plus ratification by half the states      |
| 6 | Independent judiciary         | Supreme Court guards the Constitution and settles Centre-state/inter-state disputes  |
| 7 | Bicameralism                  | Rajya Sabha (states) + Lok Sabha (people); Rajya Sabha maintains federal equilibrium |

**MEMORY HOOK**

**Dual Writing Divides Supreme Rigid Independent Bicameral = Dual polity - Written Constitution - Division of powers - Supremacy of Constitution - Rigidity - Independent judiciary - Bicameralism.**

**MAINS ANGLE**

*Which of the 7 federal features is most vulnerable to erosion by ordinary parliamentary legislation?*

**STUDY LINK**

Cross-link

10\_Amendment-and-Basic-Structure for how federal provisions require special-majority-plus-ratification amendment.

HIGH

## 4. Unitary Features Part I - Structural Dominance

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Federal System

## KEY DATA

| # | Feature                       | Key Point                                                                                                                                                        |
|---|-------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | Strong Centre                 | Union List is longer and covers more important subjects; Centre overrides the Concurrent List; residuary power lies with the Centre (in the US, with the states) |
| 2 | States not indestructible     | Parliament can alter a state's area/boundary/name by simple majority - 'indestructible Union of destructible states'                                             |
| 3 | Single Constitution           | States cannot frame their own constitution (the sole past exception was pre-2019 Jammu & Kashmir)                                                                |
| 4 | Flexibility                   | Most of the Constitution is amendable unilaterally by Parliament; only the Centre can initiate an amendment (in the US, states can too)                          |
| 5 | No equal state representation | Rajya Sabha seats are allotted by population (1 to 31); the US Senate gives 2 seats per state                                                                    |
| 6 | Emergency provisions          | National/state/financial emergencies convert the federal structure into a unitary one without any amendment                                                      |
| 7 | Single citizenship            | Like Canada; there is no separate state citizenship                                                                                                              |

## MUST-KNOW FACTS

1. India is described as an 'indestructible Union of destructible states'; the USA is described as 'a Union of indestructible states'.

## UPSC TRAPS

**WRONG:** India and the USA share the same phrase for their federal unions.

**CORRECT:** India = 'indestructible Union of destructible states'; USA = 'of indestructible states'.

## MAINS ANGLE

*Do emergency provisions represent a temporary or a structural unitary bias in India's federal design?*

## STUDY LINK

Cross-link 14\_Emergency-Provisions for how each emergency converts the federal structure to unitary.

HIGH

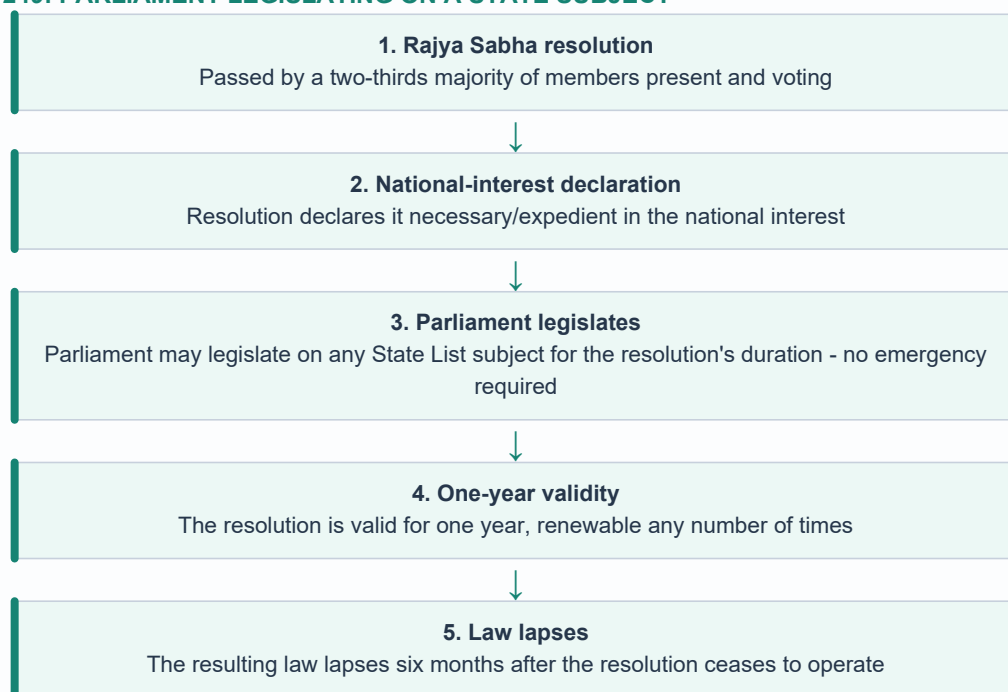
## 5. Unitary Features Part II - Institutional Control

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Federal System

## KEY DATA

| #  | Feature                                    | Key Point                                                                                                                           |
|----|--------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| 8  | Integrated judiciary                       | Supreme Court to High Courts is one system enforcing both Central and state laws (the US has double courts)                         |
| 9  | All-India Services                         | IAS/IPS/IFS are common to Centre and states, but controlled by the Centre - argued to 'violate federalism'                          |
| 10 | Integrated audit                           | CAG audits the states too; is appointed and removed by the President without consulting the states                                  |
| 11 | Parliament's authority over the State List | Article 249 - a Rajya Sabha resolution lets Parliament legislate on a State subject in the national interest, without any emergency |
| 12 | Appointment of Governor                    | Appointed by the President, holds office at his pleasure, and acts as the Centre's agent (in the US, governors are elected)         |
| 13 | Integrated election machinery              | The Election Commission of India runs both Central and state elections; states have no say                                          |
| 14 | Veto over state bills                      | The Governor reserves bills for the President, who holds an absolute (not suspensive) veto                                          |

## ARTICLE 249: PARLIAMENT LEGISLATING ON A STATE SUBJECT



## MEMORY HOOK

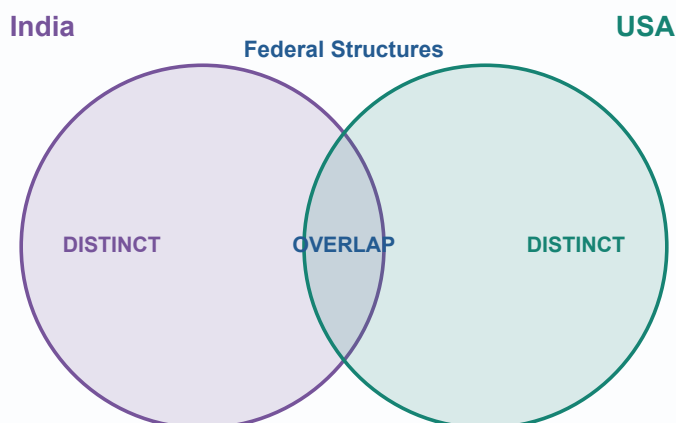
14 unitary features outweigh the 7 federal ones in day-to-day practice - hence 'quasi-federal'.

**MAINS ANGLE**

*Should Article 249's national-interest route be subjected to tighter judicial or procedural scrutiny?*

**STUDY LINK**

Cross-link 27\_Election-Commission for the integrated election machinery and 32\_CAG for integrated audit.

**HIGH****6. India vs USA Federalism - Key Contrasts**GS-II Polity -  
Federal System**INDIA VS USA - FEDERAL DESIGN****India**

- Residuary powers with the Centre
- Formed by disintegration - 'holding together'
- Rajya Sabha seats by population (1 to 31)
- Single citizenship, integrated judiciary

**Federal Structures**

- Both have a bicameral legislature
- Both have judicial review and a written Constitution

**USA**

- Residuary powers with the states
- Formed by integration - 'coming together'
- Senate gives 2 seats per state (equal)
- Dual citizenship and a double court system

*Every major design choice in India tilts toward a stronger centre than the American model.*

**MUST-KNOW FACTS**

1. The Rajya Sabha's unequal, population-based seat allocation contrasts with the US Senate's equal representation of every state.

**UPSC TRAPS**

**WRONG:** The Rajya Sabha gives equal seats to every state, like the US Senate.

**CORRECT:** Rajya Sabha seats are allotted by population (1 to 31); only the US Senate gives equal seats.

**MAINS ANGLE**

*Would moving toward equal state representation in the Rajya Sabha strengthen or weaken India's federal balance?*

**STUDY LINK**

Cross-link 17\_Parliament for the Rajya Sabha's composition and representation formula.

**HIGH****7. Scholar Characterisations of Indian Federalism**GS-II Polity -  
Federal System**STATIC THEORY**

- Ambedkar: the Constitution is federal (dual polity; both levels derive authority from the Constitution), but 'can be both unitary and federal according to the requirements of time and circumstances.'

**MEMORY HOOK**

Wheare = quasi-federal | Morris Jones = bargaining | Jennings = centralising | Alexandrowicz = sui generis | Austin = cooperative | Appleby = extremely federal.

**UPSC TRAPS**

**WRONG:** Wheare called India a genuinely federal state.

**CORRECT:** Wheare called it 'quasi-federal'.

**WRONG:** Ambedkar coined the term 'cooperative federalism'.

**CORRECT:** Granville Austin coined it.

**SCHOLAR TAGS - MATCH CAREFULLY**

| Scholar          | Characterisation                                                                         |
|------------------|------------------------------------------------------------------------------------------|
| K.C. Wheare      | 'Quasi-federal' - a unitary state with subsidiary federal features                       |
| K. Santhanam     | Unitary bias from the Centre's financial dominance and the erstwhile Planning Commission |
| Paul Appleby     | 'Extremely federal'                                                                      |
| Morris Jones     | 'Bargaining federalism'                                                                  |
| Ivor Jennings    | 'Federation with a strong centralising tendency'                                         |
| Alexandrowicz    | 'Sui generis' (unique)                                                                   |
| Granville Austin | 'Cooperative federalism' - a new kind of federation for India's needs                    |

**MAINS ANGLE**

*Which scholarly label - quasi-federal, bargaining federalism, or cooperative federalism - best fits India's GST-era Centre-state relations?*

**STUDY LINK**

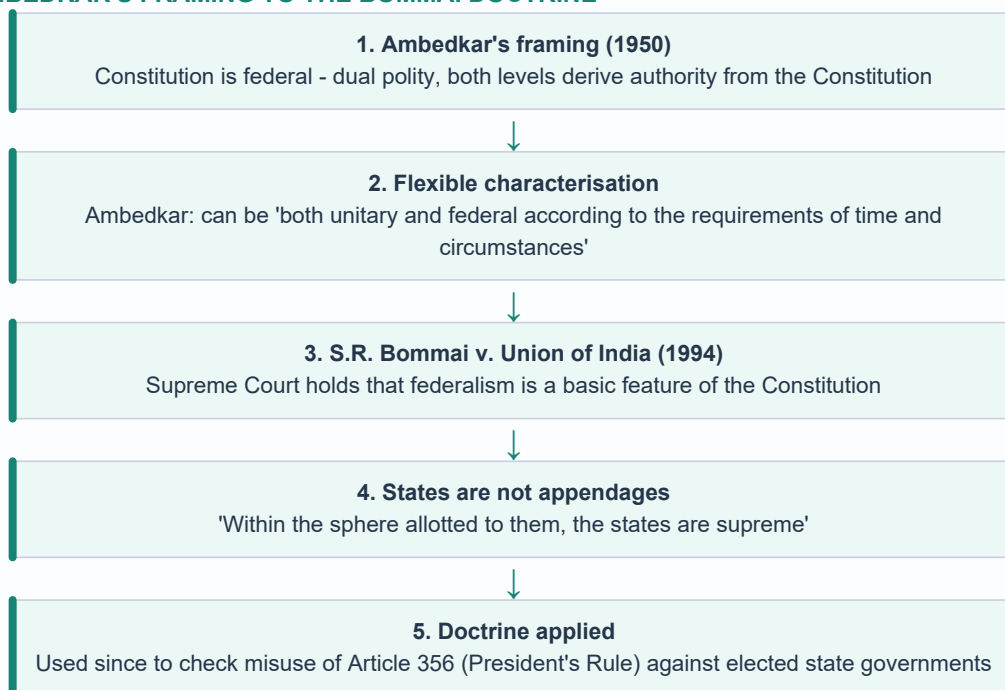
Cross-link 30\_GST-Council for how 'bargaining' and 'cooperative' federalism play out institutionally.

**HIGH****8. Ambedkar's View and S.R. Bommai (1994)**

**GS-II Polity -**  
Federal System



## FROM AMBEDKAR'S FRAMING TO THE BOMMAI DOCTRINE



## STATIC THEORY

- Indian federalism is a compromise between (i) a normal division of powers giving state autonomy and (ii) national integrity and a strong Union in exceptional circumstances.

## MUST-KNOW FACTS

1. S.R. Bommai (1994) affirmed that federalism is a basic feature of the Constitution and that states are 'not mere appendages' of the Centre.

## UPSC TRAPS

**WRONG:** S.R. Bommai diluted India's federal character.

**CORRECT:** It affirmed federalism as a basic feature of the Constitution.

## MAINS ANGLE

*How has the Bommai doctrine reshaped the judicial standard for invoking Article 356?*

## STUDY LINK

Cross-link 14\_Emergency-Provisions and 19\_Governor-CM-State-Council for Article 356's use against state governments.

HIGH

## 9. Federal Disputes and CA Anchors

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Federal System

## NEWS TRIGGER

Live federal frictions include GST coordination, a Governor's delay in assenting to bills (addressed by the 20 Nov 2025 Article 143 opinion), NEET/education as a Concurrent List subject, river-water disputes such as Cauvery, and fiscal-devolution demands from southern states - all illustrating 'bargaining'/'cooperative' federalism in practice.

**KEY DATA**

| Friction Point                  | Nature                                    | Anchor                                                                                                 |
|---------------------------------|-------------------------------------------|--------------------------------------------------------------------------------------------------------|
| GST coordination                | Fiscal federalism / joint decision-making | GST Council (Art 279-A)                                                                                |
| Governor's delay in bill assent | Legislative-relations friction            | 20 Nov 2025 Article 143 opinion (no rigid timelines, but prolonged unexplained inaction is reviewable) |
| NEET / education                | Concurrent List subject                   | 42nd Amendment shift of education to Concurrent List                                                   |
| River-water disputes            | Inter-state resource friction             | Cauvery dispute                                                                                        |
| Fiscal devolution demands       | Vertical/horizontal transfer debate       | Southern-state demands ahead of and after the 16th Finance Commission                                  |

**MAINS ANGLE**

*Cooperative vs competitive vs coercive federalism - which best describes India's current Centre-state friction points?*

**STUDY LINK**

Cross-link  
13\_Centre-State-and-Inter-State-Relations for the detailed institutional treatment of each friction point.

**HIGH****10. UPSC Traps - Federal System (Consolidated)**GS-II Polity -  
Federal System**MEMORY HOOK**

**Eight traps, one axis: the Centre is always the stronger pole - in residuary powers, seats, and formation route.**

**MUST-KNOW FACTS**

1. India = 'indestructible Union of destructible states'; residuary powers rest with the Centre.
2. S.R. Bommai (1994) affirmed federalism as a basic feature of the Constitution.
3. Rajya Sabha seats are allotted by population (1 to 31), unlike the equal US Senate seats.

**UPSC TRAPS**

**WRONG:** The word 'Federation' appears in the Constitution.

**CORRECT:** Article 1 uses 'Union of States' - the word 'Federation' is never used.

**WRONG:** India follows the American federal model.

**CORRECT:** It follows the Canadian model (strong centre, disintegration, 'Union').

**WRONG:** Residuary powers rest with the states.

**CORRECT:** They rest with the Centre (opposite of the USA).

**WRONG:** Wheare called India 'federal'.

**CORRECT:** He called it 'quasi-federal'.

**WRONG:** Cooperative federalism was coined by Ambedkar.

**CORRECT:** It was coined by Granville Austin.

**WRONG:** The Rajya Sabha gives equal seats to every state.

**CORRECT:** Seats are by population (1-31); only the US Senate is equal.

**WRONG:** S.R. Bommai diluted India's federalism.

**CORRECT:** It affirmed federalism as a basic feature.

**WRONG:** The USA and India were both formed by 'coming together'.

**CORRECT:** USA = 'coming together'; India = 'holding together' (disintegration).

**MAINS ANGLE**

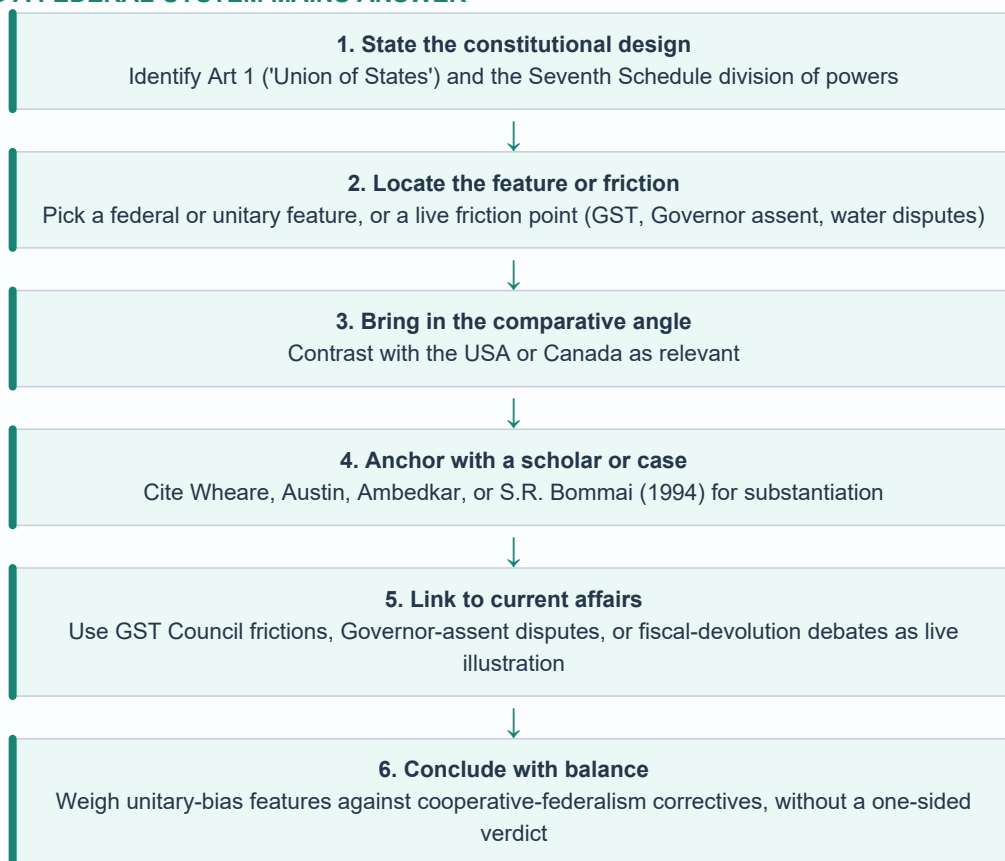
*Use this consolidated trap list as a final accuracy check before attempting any federal-system Prelims or Mains answer.*

**STUDY LINK**

Revise alongside Module 4-5 (Unitary Features) and Module 7 (Scholar Tags) before an exam attempt.

**HIGH****11. Mains Answer-Writing Framework**

**GS-II Polity -  
Federal System**

**BUILDING A FEDERAL-SYSTEM MAINS ANSWER****MAINS ANGLE**

*'Indian federalism is a case sui generis.' Discuss with recent Centre-state frictions, and evaluate whether the 14 unitary features make India a 'unitary state with federal features' post-Bommai.*

**STUDY LINK**

Use this framework for all Module 1-10 themes when converting them into a 10- or 15-mark GS-II answer.